An Equal Opportunity Employer

Subcontract No. **436K-02**
KENYON BIKE HAWK

SOUTHERN ARIZONA PAVING & CONSTRUCTION CO.

4102 E. ILLINOIS
TUCSON, ARIZONA 85714
PHONE (520) 745-8181 FAX (520) 745-8808

SUBCONTRACT AGREEMENT

THIS AGREEMENT, hereinafter called the subcontract, made this **26th day of August, 2025** between **SOUTHERN ARIZONA PAVING & CONSTRUCTION CO.,** a Corporation, herein called the Contractor, and **SUN VALLEY MARKINGS, LLC, 1574 E. Racine Dr., Casa Grande, AZ 85122, Cell: 602-717-5391, License No. 345783, ATTN.: CHRIS BRANDT, chris.brandt@sunvalleymarkings.com,** called the subcontractor.

WITNESSETH:

That the Contractor and the Subcontractor for the consideration hereinafter named, agree as follows:

Section 1. The Contractor and **The City of Tucson Dept. of Transportation,** hereinafter called Owner, have a written Contract dated **October, 2024**, hereinafter called the Contract, for the following described improvement: **COT Rolling Hills – KENYON DRIVE BIKE HAWK. Contract 250001.** Certain general conditions, plans, drawings, and specifications prepared by **The City of Tucson Dept. of Transportation,** hereinafter called the Architect-Engineer, are part of the Contract. The contract plans, drawings, specifications and a copy of the Contractor's Bond to the Owner, if any, are all available for inspection at all times at the office of the Contractor and are all by this reference made a part hereof and incorporated herein insofar as the same are in any way applicable hereto.

It is understood and agreed that the Subcontractor has, by careful examination, satisfied itself as to the nature and location of the work, the conformation of the ground, the character of equipment and facilities needed preliminary to and during the prosecution of the work, the general and local conditions, and all other matters which can in any way affect the work under this Contract. Therefore, the Subcontractor agrees to furnish all supervision, labor, material, equipment, tools and other property, to perform all work as described below, complete in place including any and all work incidental thereto unless otherwise expressly stated in this agreement, in accordance with the Pima County/City of Tucson Standard Specifications for Public Improvements, the general conditions of the Contract, the plans, drawings, Special Provisions, and addendum thereto.

The Contractor shall pay to the Subcontractor for performance of the subcontract the amounts determined for the total number of each of the following units of work completed at the unit price stated thereafter in the following schedule. The number of units contained in this schedule is approximate only, and the final payment shall be made for the actual number of units that are incorporated in the finished work.

ITEM NO.	DESCRIPTION	QTY	UNIT	UNIT PRICE	TOTAL
7040005	WHITE THERMOPLASTIC	1730	LF	$1.00	$1,730.00
7040130	WHITE THERMOPLASTIC TRANSVERSE	440	LF	$3.00	$1,320.00
7040140	YELLOW THERMOPLASTIC TRANSVERSE	570	LF	$3.00	$1,710.00
7080001	PAINTED PAVEMENT MARKINGS	1744	LF	$.65	$1,133.60
7080100	PREFORMED GREEN BIKE LANE MARKINGS	160	SY	$100.00	$16,000.00
7080111	PREFORMED WAYFINDER (BIKE SPOT)	2	EA	$100.00	$200.00
9010001	MOBILIZATION	2	EA	$2,700.00	$5,400.00
				TOTAL:	**$27,493.60**

Excludes: Tax, bonds, permits, sweeping, survey, traffic control, obliteration, as-builts,
Includes: Furnishing of Material, Labor, Equipment, and all Incidentals thereto necessary to complete work.

This Subcontract Agreement is contingent upon final award of the contract to Southern Arizona Paving and acceptance of the Subcontractor by the Owner, **The City of Tucson Dept. of Transportation**.

Section 2. The Subcontractor agrees to perform the work according to the time schedule and in the progressive order required by the Contract or established by the Contractor.

Section 3. Payment will be made on Contractor approved pay request, submitted for the current monthly estimate (monthly cut-off date for pay quantities being the last Sunday of each month and/or Owners determined cut-off date) for which payment is requested, for ninety per cent (90%) of all work completed to date (unless prohibited by Agency Contract). Each payment, including final payment (which shall not become due until all of the work has been completed to the full satisfaction of the Architect-Engineer of Owner), will be made to the Subcontractor within ten (10) days receipt of related payment by the Contractor from the Owner. Contractor reserves the right to adjust monthly payments in case of back charges and/or possible claims.

Section 4. The Contractor and Subcontractor agree to be bound by the terms of the Contract, general conditions, plans, drawings, specifications and Bond furnished to the Owner by the Contractor, if any, as far as applicable to this subcontract and also by the terms and conditions set forth in the section entitled "Terms and Conditions", which are specifically incorporated herein and made part thereof.

The following conditions are applicable to this subcontract:

1. Subcontractor's Bond **is not** required.
2. Certificates of Insurance naming this job and naming Southern Arizona Paving and Construction Co. as additional insured must be submitted to Southern Arizona Paving **prior to commencing work.** The Certificates must show coverage as follows:

a. Workmen's Compensation /Employers Liability				
	Each Person	$500,000	Each Accident	$500,000
	Each Disease	$500,000 policy limit		
b. General Liability		Bodily Injury Liability	Property Damage Liability	
	Each Person	$2,000,000	Each Accident	$2,000,000
	Aggregate	$2,000,000	Aggregate	$2,000,000
c. Automobile				
	Each Person	$2,000,000	Each Accident	$2,000,000
	Aggregate	$2,000,000		

The following coverage's must be included in General Liability: (1) Broad Form Property Damage, (2) Contractual, (3) On going and Completed Operations, (4) ECU Coverage if applicable, (5) per Project Aggregate

The Contractor and Subcontractor for themselves and their successors, executors, administrators, and assigns, hereby agree to the full performance of the covenants provided in this Subcontract. The Subcontractor shall not be entitled to make an assignment of the Subcontractor's rights or obligations in connection with this Subcontract or any part thereof except as provided in the Terms and Conditions.

In witness whereof, have executed this Subcontract the date above written.

SUN VALLEY MARKINGS, LLC

Christopher Brandt
By

Owner/Member
Title

08.27.2025
Date

SOUTHERN ARIZONA PAVING

By

VP
Title

8-27-25
Date

TERMS AND CONDITIONS

1. The Contractor, at any time before completion and final acceptance of the work required under this Subcontract Agreement ("Agreement"), may order any changes or alterations in the work required to be performed by the Subcontractor. No such changes or alterations shall be made unless and until the Subcontractor is notified by the Contractor in writing. The Subcontractor shall disclose ONLY to the Contractor any price or quotation on the cost of contemplated changes or alterations in the work. The Subcontractor shall not during the progress of the work negotiate directly with the Owner for any additions or alterations to the work required to be performed under the Contract.

2. The Subcontractor shall at all times, in proportion to its fault, hold harmless and indemnify the Contractor, project owner, or others specified in this contract from any and all claims arising under this Agreement including but not limited to claims for damage to its property or from injuries or death to its employees or third persons, including staffing agencies, temporary or supplied workers directly resulting from Subcontractor's or third party's negligence in its performance of work and shall reimburse the Contractor for any and all expenses defending such claims including the costs, expenses, and reasonable attorneys' fees resulting therefrom. To the extent that damages result from the negligence of the Contractor, its other subcontractors, their employees, or others acting on their behalf, not under the authority and control of Subcontractor, this paragraph shall not apply. The Subcontractor shall, upon request, furnish verification of material quantities and proof of payment to material suppliers and lower tier subcontractors or payments due shall be withheld. Subcontractor's obligation to indemnify Contractor shall only extend to the percentage of negligence of Subcontractor, or of Subcontractor's subcontractors in contributing to such claims.

3. The Contractor supports a safe and drug free workplace policy. The Contractor shall not be liable or responsible in any manner for any acts of the Subcontractor in the performance of this Agreement or for any liability directly resulting from any act or thing done or omitted to be done, or failing to adhere to safety policies in common by Subcontractor, its officers, agents, employees, assigns, sub-contractors or others. The Subcontractor agrees at all times to protect and hold harmless the Contractor from any such liability provided that said damages above are not caused by the negligent acts of Contractor, Owner, other subcontractors, or anyone acting on their behalf, then the cost of any repairs or replacements shall be borne by the responsible party and not the Subcontractor. In addition hereto, the Subcontractor at all times during the performance of said work shall carry adequate workman's compensation insurance to cover all employees engaged in such work and also adequate public liability, personal injury and property damage insurance, including comprehensive coverage in such companies and in such amounts as set forth in Section 4 of the Agreement. Certificates of all such insurance shall be furnished to the Contractor at the time of execution of this Agreement. Subcontractor shall provide the following insurance coverage: (i) Workers compensation and employer's liability insurance, (ii) comprehensive automobile liability insurance, (iii) commercial general liability (CGL) insurance. CGL insurance shall be written on an occurrence form. All policies except workers compensation shall name Contractor as additional insured and shall be primary and non-contributory to the extent of Subcontractors negligence in the performance of the work. Policies shall also contain waivers of subrogation against the Contractor and Owner and shall not be cancelled without 30 days prior written notice to Contractor. Before starting work on the project, subcontractor shall furnish certificates of insurance and if requested, complete copies of all policies to Contractor. Certificates shall evidence the required insurance as set forth in section 4 and shall include actual copies of endorsements for additional insured, primary/non-contributory coverage and waiver of subrogation in forms acceptable to contractor. In addition, the Subcontractor shall be liable for his portion of work and materials until final acceptance is given by Owner. Subcontractor, any staffing agencies, or supplied workers must ensure compliance with OSHA requirements per Act of 1970 and assume primary responsibility.

4. The Subcontractor represents and warrants that it holds at all times for the duration of this contract a valid Arizona Contractors license, specific to the performance of said work. In addition, **if required**, the Subcontractor shall furnish at the time of execution of this agreement a performance bond guaranteeing the performance of its responsibilities under the Contract and this Agreement in a form acceptable to the Contractor. The Subcontractor shall also furnish a payment bond guaranteeing the payment in full of the claims of all persons performing labor upon or furnishing materials to the Subcontractor. The amount of said bonds shall be subject to the approval of the Contractor. The Contractor may require the Subcontractor to correct any errors in the bond or bonds furnished by the Subcontractor to the Contractor, to comply with the provisions hereof. Anything in this Agreement to the contrary notwithstanding, the Contractor with or without notice, may terminate this Agreement in the event the Subcontractor shall be in default in

connection with the provisions of this paragraph, in which event the Contractor shall have the same rights in connection with such termination as are provided in connection with termination as set forth in Item No. 5 below.

5. In the event that Subcontractor shall at any time while this Agreement is in effect become insolvent, file for bankruptcy, make an assignment for the benefit of creditors, commit any act of insolvency, fail to pay promptly when due all legitimate charges for labor, material or other services or items used in the performance of this Agreement, neglect to perform the work properly or fail to perform any provision of this Agreement, through no fault of others, then Contractor shall provide Subcontractor five (5) days written notice of such deficiency or default, whereupon, the Subcontractor shall have this time to make good the deficiency or default and should the Subcontractor fail to do so, the Contractor may then declare the Subcontractor in default of this entire Agreement without further notice and proceed to complete the same by such means as the Contractor deems fit. Upon taking charge and possession of said work, the Contractor shall proceed with the work by such reasonable means as the Contractor deems necessary and advisable, including contracting with or employing other parties at the usual and prevailing prices for such work in the locality.

6. The Subcontractor agrees to complete the work required under this Agreement within the time requirements prescribed herein or within such time as may be extended by reason of delay, changes, additions, or other reasons beyond the control of Subcontractor. Should the Subcontractor not complete the same within such time, the Subcontractor shall pay the Contractor for each and every day of such delay as and for liquidated damages the amount per day as listed in the Standard Specifications to the extent caused by Subcontractor. This amount of damages is determined in view of the difficulty of estimating the actual damages resulting from such delay and is not by way of penalty. In the event that liquidated damages become applicable, such damages shall be deducted from any balances due the Subcontractor and should the damages exceed such balances, the Subcontractor shall pay any and all differences to the Contractor forthwith. Notwithstanding, Subcontractor shall not be liable to Contractor for incidental and consequential damages.

7. The Subcontractor shall not assign any of its rights or obligations under this without prior written consent from the Contractor.

8. It is agreed that the Subcontractor stands solely in the capacity of an independent contractor. Except as provided herein, the Contractor shall exercise no control over any of Subcontractor's employees, sub-subcontractor, material producers or others that might be working under the Subcontractor or the manner in which any of the work described herein is performed or services furnished. Under no circumstances shall any of the employees of the Subcontractor be construed to be or have or exercise any rights or claims as employees of the Contractor. The work performed by Subcontractor shall be done in a thorough, workmanlike manner and all labor and materials shall be in accordance with the specifications and the work shall be performed in compliance with the drawings, plans and specifications to the reasonable satisfaction of the Contractor and the Owner. The Subcontractor is solely responsible for the performance of work described in Section 1 of the executed Subcontract Agreement and shall cooperate with other trades to avoid delays of any kind.

9. The Subcontractor represents and warrants that it holds all necessary governmental licenses required by law or applicable rules and regulations of governmental authorities having jurisdiction for the conduct of Subcontractor's business and the performance of its work pertaining to safety, employment, and licensing, or as set forth in the plans and specifications. In the event that additional requirements are imposed upon Subcontractor by a governmental authority which affects this Agreement, the Subcontractor shall procure the same at the expense of the Contractor. The Subcontractor shall be responsible for and required to meet all inspection requirements imposed by government authorities mentioned in the specifications or not, and shall repair or correct its work to meet such requirements without any expense, cost or charge to the Contractor.

10. No temporary office or other building shall be placed on the job site by the Subcontractor until approval in writing as to the location, design and painting thereof has first been received from the Contractor.

11. The Subcontractor agrees to notify the Contractor's Job Superintendent upon the arrival of the Subcontractor at the job-site. The Subcontractor shall clean up all areas used by him of all debris and other materials at Subcontractor's expense prior to leaving the job.

12. The Subcontractor shall promptly deliver to the Contractor shop drawings and other data required by the specifications.

13. Subcontractor will provide a one year repair and replace warranty from the date of complete of its work. If at any time during the warranty period, any part of the materials or workmanship furnished by the Subcontractor shall prove to be defective or not in conformance with the plans and specifications, the Subcontractor will, upon receipt of written notice from the Contractor, repair or replace all defective workmanship or materials to the satisfaction of the Contractor and the Owner, without cost to the Contractor. Nothing herein shall relieve the Subcontractor of any warranties for latent defects or otherwise which shall be provided by or in accordance with law.

14. The Subcontractor agrees to be bound to the Contractor by the terms of the Contract between the Contractor and the Owner and the specifications in connection therewith as it specifically relates to the subcontract work. Specifically, the Subcontractor agrees: (1) that the determination of any disputed question made pursuant to the general conditions, drawings, and specifications of the Contract shall be binding upon the Subcontractor provided Subcontractor is allowed to represent its own interests; and (2) that in all respects the work of Subcontractor is to be governed by the plans, specifications and general conditions provided to Subcontractor at bid time, and insofar as such are applicable to the work under this Agreement.

15. The Subcontractor assumes the risk of any delays in the performance of this Agreement and any resulting damage to the Subcontractor except to the extent caused by others not under the authority and control of the Subcontractor. Such delays shall not include those caused by inclement weather, fires, earthquakes, acts of God, wars, strikes, picketing, boycotts, lock outs or changes in or additions to the work to be performed under the Contract and this Agreement. In the event the Subcontractor is delayed or prevented from performing its work, the Contractor shall not be liable for any damages resulting there from, except when such damage is caused by the Contractor, Owner, anyone acting on their behalf, or its other subcontractors. No additional compensation shall be granted to the Subcontractor by the Contractor for any adverse conditions encountered, i.e. hard dig, rock, etc. other than what is provided for under the Contract or approved by the Owner by a supplemental agreement.

16. The waiver by the Contractor of any of these terms and conditions shall not be deemed a waiver of any of the other terms and conditions.

17. Nothing under this Agreement shall be construed as creating the relationship of partners or joint ventures between Contractor and Subcontractor or imposing any liability as if such relationship exists, nor shall anything herein be deemed to constitute a relationship between the parties other than a Contractor-independent contractor relationship.

18. The Subcontractor represents and warrants that it owns the necessary equipment, materials and other property and the necessary funds with which to perform the work required under this Agreement.

19. In the event there are any claims of any nature arising from or out of the work performed under this Agreement, or in the event of any claim by the Contractor against the Subcontractor in connection with this Agreement or any other matter, the Contractor shall have the right to retain from any earnings or retention which might otherwise be due the Subcontractor, an amount equal to the aggregate of any such claims until final settlement of said claims. From the amount so retained by the Contractor, payment may be made directly by the Contractor to the claimant(s) upon final settlement of said claims or asserted claims and the Contractor shall receive full credit against the sums due the Subcontractor in connection with this Agreement. Individual claims or asserted claims may be finally settled separately with the approval of the parties in which event payment thereof may be made directly by the Contractor as herein provided. This provision shall apply to any assignee, second-tier subcontractor or other party associated with the subcontractor if applicable.

20. The Subcontractor shall not give the consent for any OSHA inspections. OSHA compliance officers seeking consent for inspection shall be directed to the Contractor or the Contractor's field representative.

21. Whenever the giving of written notice is required or permitted by the terms contained herein, said notice shall be deemed to be given when either (a) notice is personally served upon the party which is to receive such notice or (b) notice is deposited in the U.S. mails, postage prepaid and addressed to the person receiving such notice at his or her last known business address.

436K

ESTIMATE

Sun Valley Markings, LLC.
1574 E Racine Dr
Casa Grande, AZ 85122

chris.brandt@sunvalleymarkings.com
+1 (602) 717-5391
www.sunvalleymarkings.com

Bill to
Estimate

Estimate details
Estimate no.: 250482
Estimate date: 08/13/2025

Job Name: Kenyon Bike Hawk
Job Location: Tucson, Arizona

#	Date	Product/service	UOM	Description	Qty	Rate	Amount
1.		**Painted Pavement Markings**	LF	Painted Pavement Markings	1744	$0.65	$1,133.60
2.		**Long Line Thermo W4**	LF	White Thermoplastic 4" Equiv	1730	$1.00	$1,730.00
3.		**Short Line Thermo W4**	LF	Transverse White Thermoplastic 4" Equiv	440	$3.00	$1,320.00
4.		**Short Line Thermo Y4**	LF	Transverse Yellow Thermoplastic 4" Equiv	570	$3.00	$1,710.00
5.		**Preformed Green Bike Lane Markings**	SY	Preformed Green Bike Lane Markings	160	$100.00	$16,000.00
6.		**Preformed Wayfinder**		Preformed Wayfinder (Bike Spot)	2	$100.00	$200.00
7.		**Mobilization**	EA	Mobilization	2	$2,700.00	$5,400.00

Total **$27,493.60**

Note to customer

1. Proposal is good for 30 days from date of quotation
2. 2-week notice preferred for scheduled work.
3. This quote includes 2 Mobs
4. Any additional mobs will be at unit price
5. This quote excludes any sealant over obliterated areas.

Additional Exclusions include:
Bond is not Included.
Taxes Not Included
State, County & City Permits
Sweeping
Survey & Layout
Traffic Control
Removal of Curing Compound
As-Built Drawings/Survey

Water and Dump Location Onsite
Removal/ Disposal of Lead Based Materials
Removal / Disposal of Debris From
Rumble Strips
Sealant Over-Obliterated Areas
Obliterate Existing Markings

Client will be billed as the work is completed or on a pre-negotiated schedule based on a Net 30 terms.
Sun Valley Markings, LLC. appreciates the opportunity to provide pavement marking services to you and looks forward to performing this work. Should you have any questions regarding this submittal, please do not hesitate to call.

Accepted date **Accepted by**